Vendor Services Agreement — supplier paper

VENDOR SERVICES AGREEMENT (Supplier paper — includes planted non-market terms)

This Vendor Services Agreement ("Agreement") is entered into as of the Effective Date by and between Northwind Procurement Ltd. ("Customer") and the supplier identified on the Order Form ("Vendor"). Customer wishes to purchase hosted software and related services. The following terms control over any Customer purchase order.

1. DEFINITIONS

1.1 "Customer Data" means information Customer submits to the Service.

1.2 "Service" means Vendor's hosted platform and any related professional services.

1.3 "Fees" means all amounts Vendor invoices, including usage, overages, and any additional charges Vendor may introduce.

2. SERVICES

2.1 Vendor will make the Service available during the Term. Vendor does not commit to any specific uptime, support response time, or service credit.

2.2 Vendor may modify, suspend, or discontinue features at any time without liability.

2.3 Vendor may use subprocessors in its discretion without notice to Customer.

3. FEES AND PAYMENT

3.1 Invoices are due within ten (10) days. Late amounts accrue interest at 1.5% per month. Customer may not withhold or set off amounts.

3.2 Vendor may increase fees at any time upon ten (10) days' notice. A platform infrastructure fee equal to eight percent (8%) of all amounts invoiced shall apply.

3.3 All Fees are non-cancellable and non-refundable, including unused commitments.

4. TERM AND RENEWAL

4.1 The initial term is twenty-four (24) months from the Effective Date.

4.2 This Agreement automatically renews for successive twenty-four (24) month terms unless Customer provides written notice of non-renewal at least fifteen (15) days before the then-current term ends.

4.3 If Customer continues to use the Service after termination, Fees continue and this Agreement is deemed renewed.

5. DATA PROTECTION AND SECURITY

5.1 Customer Data may be stored, processed, and transferred in any jurisdiction Vendor selects, including the United States, India, and other countries that are not the subject of an adequacy decision.

5.2 Vendor will use commercially reasonable efforts to notify Customer of a Security Incident.

5.3 Customer is solely responsible for the lawfulness of Customer Data and for providing notices and obtaining consents. Vendor is not a "processor" for GDPR purposes unless Vendor agrees in a separate paid

addendum.

5.4 Vendor may disclose Customer Data to its affiliates, subprocessors, and commercial partners to operate and improve the Service.

6. CONFIDENTIALITY

6.1 Customer shall keep Vendor's pricing, product plans, and this Agreement confidential. Vendor's confidentiality obligations to Customer, if any, expire ninety (90) days after disclosure.

7. INTELLECTUAL PROPERTY

7.1 All work product, including deliverables created for Customer, shall be owned exclusively by Vendor. Vendor is granted a perpetual, irrevocable license to use Customer Data to improve Vendor's products.

7.2 Customer is granted a non-exclusive, non-transferable, revocable licence to access the Service during the Term only. Feedback is assigned to Vendor.

8. LIMITATION OF LIABILITY

8.1 THE SERVICE IS PROVIDED "AS IS". VENDOR DISCLAIMS ALL WARRANTIES, INCLUDING MERCHANTABILITY AND FITNESS FOR A PARTICULAR PURPOSE.

8.2 Vendor's aggregate liability under this Agreement shall be unlimited.

8.3 Customer shall indemnify, defend, and hold harmless Vendor from any and all claims, including those arising from Vendor's own negligence.

8.4 Customer waives all claims not brought within thirty (30) days after the event giving rise to the claim.

9. TERMINATION

9.1 Customer may not terminate this Agreement for convenience. Termination is permitted solely for material breach that remains uncured for ninety (90) days.

9.2 Vendor may terminate immediately for convenience or if Customer objects to a fee increase.

9.3 Vendor has no obligation to provide exit assistance, data export, or transition services. Customer Data may be deleted immediately on termination.

10. GOVERNING LAW AND DISPUTES

10.1 This Agreement is governed by the laws of the Cayman Islands. All disputes shall be resolved by confidential binding arbitration in George Town. Customer waives any right to participate in a class action.

10.2 The prevailing party is not entitled to costs. Customer shall pay Vendor's legal fees in any dispute, win or lose.

11. GENERAL

11.1 Vendor may assign this Agreement freely. Customer may not assign without Vendor's prior written consent, which may be withheld in Vendor's sole discretion.

11.2 If any Customer terms conflict with this Agreement, this Agreement controls. Click-through updates posted to Vendor's website amend this Agreement without further notice.

IN WITNESS WHEREOF Vendor has issued this Agreement as of the Effective Date.